

		Plaintiff has not shown that he served the LWDA with his moving papers. Plaintiff is ordered to give notice of the ruling to the LWDA, and to Defendant, to serve the LWDA with his original moving papers as well as any new papers filed for future hearings, and to file a proof of service showing such compliance.
2	30-2023-01334565 Duong vs. Mobilitie Holdings, LLC	Plaintiff Monique Duong's ("Plaintiff") Motion for Final Approval of Class Action Settlement is GRANTED IN PART. An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, and based on plaintiff's contribution to the case. The court also finds that an attorneys' fee award totaling \$106,740.00 or 30% of the Gross Settlement Amount, is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved. The court concludes that the \$355,800.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$106,740.00 to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the \$118,600.00 requested; • \$19,019.26 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Monique Duong as enhancement award, reduced from the \$7,500.00 requested; and • \$6,250.00 to CPT Group, Inc., the settlement administrator, as requested. The court notes that the gross settlement amount includes \$42,353.34 that was previously paid as a part of <i>Pick Up Stix</i> settlements. Thus, the total amount that will be payable to all class members, if they are paid the amount to which they are entitled pursuant to the judgment, is \$176,437.40.

		The Final Accounting hearing is set for March 22, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator must submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiff shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiff is ordered to give notice of this ruling.
3	JCCP 5194 Aaron Thomas Wage and Hour Cases	The tentative ruling is to continue Plaintiff Stephanie Navarro Reyes's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff failed to provide the court with a text-searchable settlement agreement in compliance with CRC 2.256(b)(3). Plaintiff's counsel states: "To effectuate the Settlement, the Parties agreed to file an amended complaint adding the PAGA claims." (Savoy Dec. ¶ 3.) However, no amended complaint has been filed with a PAGA claim for Plaintiff. Aggrieved employees are defined as "all non-exempt employees employed by Defendants in California at any time between November 5, 2018, through November 28, 2025" (Settlement ¶ 1.5) but the PAGA Period is defined as

		December 3, 2018 through November 28, 2025 (Settlement ¶ 1.32). These terms must be consistent. The motion fails to provide the class members' estimated high and low payments to be paid to class members and the estimated average payment to be paid to aggrieved employees. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. Plaintiff does not provide any information as to how attorneys' fees will be split between the two firms representing plaintiff and the class. Plaintiff must disclose the proposed split so that the court can approve separate attorneys' fees awards. The following corrections must be made to the class notice: • The case number is listed incorrectly on Page 1 of the class notice and on Page 8 (Section 6) of the class notice. The case number should be JCCP 5194. • Class members may object to the amount allocated to PAGA penalties. The second row, first column of Page 3 of the class notice should state: "Participating Class Members Can Object to the Class Settlement," and the phrase "but not the PAGA Settlement" should be removed. • On Page 5 of the notice, the phrase "Court Approved Deductions from Gross Settlement," should be
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		amended to state “Deductions from Gross Settlement Subject to Approval by the Court” since the court has not granted final approval of these deductions. • The Opt Out Form must explain that class members who are also aggrieved employees may not opt out of the PAGA portion of the settlement and still receive their portion of the PAGA penalties. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to provide notice of this ruling to the LWDA and Defendant.
4	30-2020-01131297 Villagomez vs. Marcos & Javiers, LLC	The tentative ruling is to continue Plaintiffs Andrea Martinez and Juana Maria Ramirez Angeles’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys’ fees